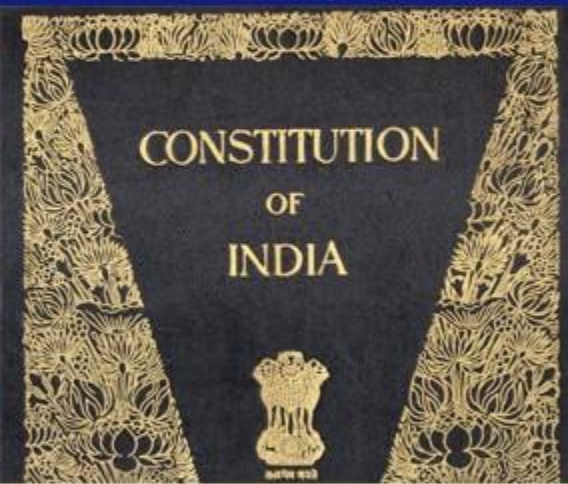


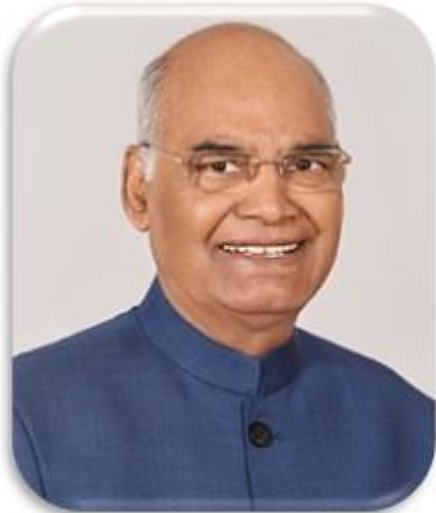
INDIAN POLITY



MODULE - 58

PRIME MINISTER

ROLE OF PRIME MINISTER IN PARLIAMENTARY SCHEME



- ✓ de jure – existing or holding a specified position by legal right.
- ✓ de facto – existing or holding a specified position in fact, but not necessarily by legal right.

1 In the scheme of Parliamentary System of Government provided by the Constitution, the **President is the nominal executive authority** (de jure executive) and **Prime Minister is the real executive authority** (de facto executive).

2 In other words, President is the head of the State while Prime Minister is the head of the Government.

PRIME MINISTER

APPOINTMENT OF THE PRIME MINISTER

- 1 The Constitution does not contain any specific procedure for the selection and appointment of the Prime Minister.

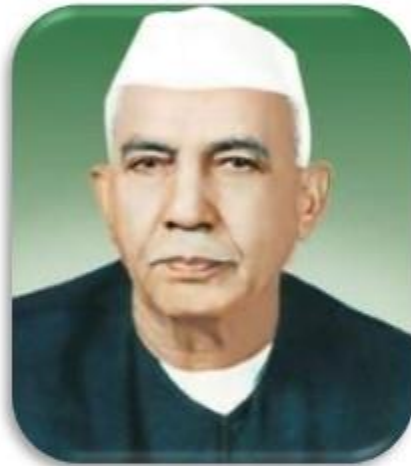


- 2 Article 75 says only that the Prime Minister shall be appointed by the President.
- 3 However, this does not imply that the president is free to appoint any one as the Prime Minister.
- 4 In accordance with the conventions of the Parliamentary System of Government, the President mostly appoints the leader of the majority party in the Lok Sabha as the Prime Minister.

APPOINTMENT OF THE PRIME MINISTER

WHAT HAPPENS WHEN NO PARTY HAS A
CLEAR MAJORITY?

SANJEEVA REDDY



CHARAN SINGH

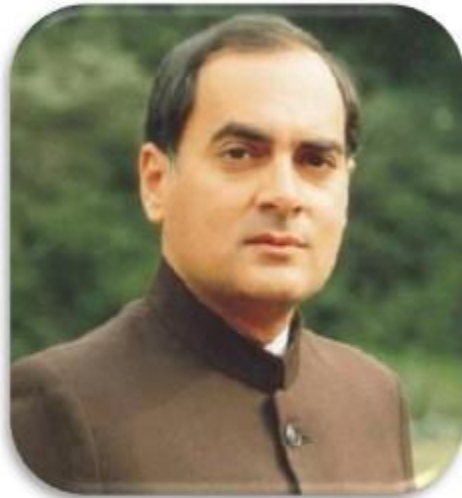
- 1 But, when no party has a clear majority in the Lok Sabha, then the President may exercise his personal discretion in the selection in the appointment of the Prime Minister.

- 2 In such a situation, the President usually appoints the leader of the largest party or coalition in the Lok Sabha as the Prime Minister and asks him to seek a vote of confidence in the House within a month.

- 3 This discretion was exercised by the President, for the first time in 1979, when Neelam Sanjiva Reddy (the then President) appointed Charan Singh (the coalition leader) as the Prime Minister after the fall of the Janata Party government headed by Morarji Desai.

APPOINTMENT OF THE PRIME MINISTER

WHAT ARE THE OTHER SITUATIONS IN WHICH PRESIDENT EXERCISES HIS DISCRETIONARY POWER?



- 1 There is also one more situation when the president may have to exercise his individual judgement in the selection and appointment of the Prime Minister, that is, **when the Prime Minister in office dies suddenly and there is no obvious successor.**

- 2 This is what happened when Indira Gandhi was assassinated in 1984.

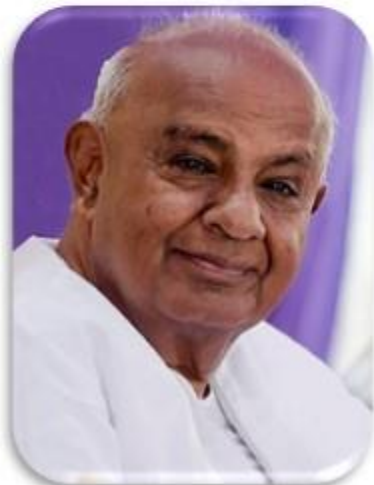
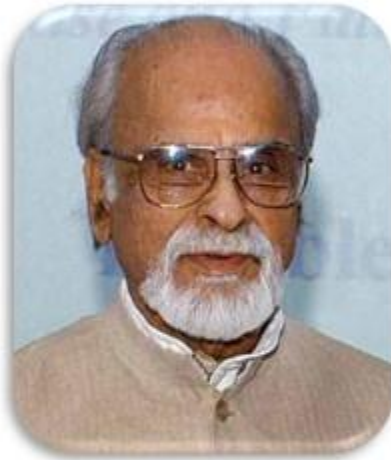
- 3 The then President Zail Singh appointed Rajiv Gandhi as the Prime Minister by ignoring the precedent of appointing a caretaker Prime Minister.

- 4 Later on, the Congress parliamentary party unanimously elected him as its leader.

- 5 However, if, on the death of an incumbent Prime Minister, the ruling party elects a new leader, the President has no choice but to appoint him as Prime Minister.

APPOINTMENT OF THE PRIME MINISTER

IS IT NECESSARY TO PROVE A PERSON'S MAJORITY BEFORE APPOINTMENT AS PM?



- 1 In 1980, the Delhi High Court held that the Constitution does not require that a person must prove his majority in the Lok Sabha before he is appointed as the Prime Minister.
- 2 The President may first appoint him the Prime Minister and then ask him to prove his majority in the Lok Sabha within a reasonable period.
- 3 For example, Charan Singh (1979), VP Singh (1989), Chandrasekhar (1990), PV Narasimha Rao (1991), AB Vajpayee (1996), Deve Gowda (1996), IK Gujral (1997) and again AB Vajpayee (1998) were appointed as Prime Ministers in this way.

APPOINTMENT OF THE PRIME MINISTER

CAN A NON-MEMBER BE APPOINTED AS PM?



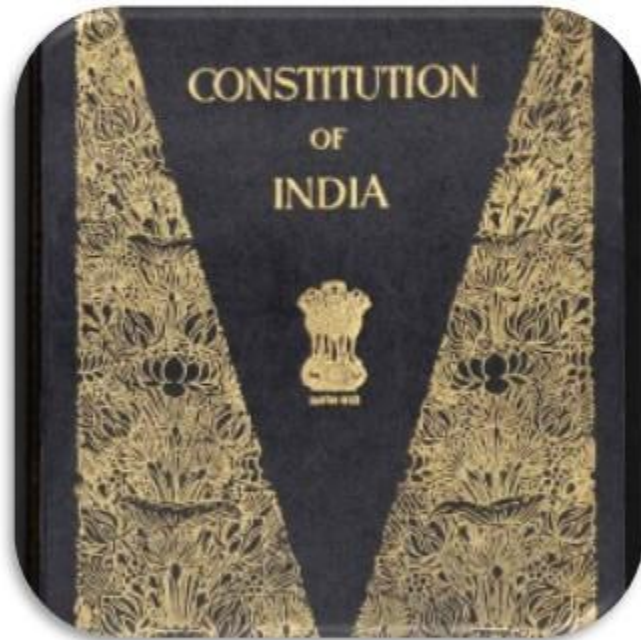
- 1 In 1997, the Supreme Court held that a person who is not a member of either House of Parliament can be appointed as Prime Minister for six months, within which, he should become a member of either House of Parliament; otherwise, he ceases to be the Prime Minister.

- 2 Constitutionally, the Prime Minister may be a member of any of the two Houses of parliament.

- 3 For example, three Prime Ministers, Indira Gandhi (1966), Deve Gowda (1996) and Manmohan Singh (2004), were members of the Rajya Sabha.

- 4 In Britain, on the other hand, the Prime Minister should definitely be a member of the Lower House (House of Commons).

OATH, TERM AND SALARY



- 1 Before the Prime Minister enters upon his office, the president administers to him the oaths of office and secrecy.
- 2 In his oath of office, the Prime Minister swears:
 - 1) To **bear true faith and allegiance** to the Constitution of India,
 - 2) To **uphold the sovereignty and integrity** of India,
 - 3) To faithfully and **conscientiously discharge** the duties of his office, and
 - 4) To do right to all manner of people in **accordance with the Constitution** and the law, without fear or favour, affection or ill will.

OATH, TERM AND SALARY

- 3 In his oath of secrecy, the Prime Minister swears that **he will not directly or indirectly communicate** or reveal to any person(s) any matter that is brought **under his consideration** or becomes known to him as a Union Minister except as may be required for the due discharge of his duties as such minister.
- 4 The term of the Prime Minister is not fixed and **he holds office during the pleasure of the president.**
- 5 However, this does not mean that the president can dismiss the Prime Minister at any time.
- 6 So long as the Prime Minister enjoys the majority support in the Lok Sabha, he cannot be dismissed by the President.
- 7 However, if **he loses the confidence of the Lok Sabha**, he must resign or the President can dismiss him.

OATH, TERM AND SALARY



8 The salary and allowances of the Prime Minister are **determined by the Parliament** from time to time.

9 He gets the salary and allowances that **are payable to a member of Parliament**.

10 Additionally, he gets a sumptuary allowance, free accommodation, travelling allowance, medical facilities, etc.

POWERS AND FUNCTIONS OF THE PRIME MINISTER

1 IN RELATION TO COUNCIL OF MINISTERS

The Prime Minister enjoys the following powers as head of the Union council of ministers:

- 1 He **recommends persons** who can be appointed as ministers by the President..
- 2 The President can appoint only those persons as ministers who are recommended by the Prime Minister.
- 3 He **allocates and reshuffles various portfolios** among the ministers.
- 4 He can **ask a minister to resign or advise the President to dismiss him** in case of difference of opinion.
- 5 He **presides over the meeting of council of ministers** and influences its decisions.
- 6 He guides, directs, controls, and coordinates the activities of all the ministers.
- 7 He can **bring about the collapse of the council of ministers** by resigning from office.

POWERS AND FUNCTIONS OF THE PRIME MINISTER

1 IN RELATION TO COUNCIL OF MINISTERS

- 8 Since the Prime Minister stands at the head of the council of ministers, the other ministers cannot function when the Prime Minister resigns or dies.



- 9 In other words, the resignation or death of an incumbent Prime Minister automatically dissolves the council of ministers and thereby generates a vacuum.

- 10 The resignation or death of any other minister, on the other hand, merely creates a vacancy in the government.

“ Prime Minister and his Council of Ministers swim and sink together ”

POWERS AND FUNCTIONS OF THE PRIME MINISTER

2

IN RELATION TO THE PRESIDENT

- 1 He is the principal channel of communication between the President and the council of ministers.



2

It is the duty of the Prime Minister :

- to communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation
- to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for
- if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

PRIME MINISTER

POWERS AND FUNCTIONS OF THE PRIME MINISTER

2

IN RELATION TO THE PRESIDENT



Government of India

**Union Public Service
Commission**



3

He advises the President with regard to the appointment of important officials like Attorney General of India, Comptroller and Auditor General of India, chairman and members of the UPSC, Election Commissioners, chairman and members of the Finance Commission and so on.

PRIME MINISTER

POWERS AND FUNCTIONS OF THE PRIME MINISTER

3

IN RELATION TO PARLIAMENT



- 1 He advises the President with regard to **summoning and proroguing** of the sessions of the Parliament.
- 2 He can **recommend dissolution** of the Lok Sabha to President at any time.
- 3 He **announces government policies** on the floor of the House.

OTHER POWERS & FUNCTIONS

In addition to the above-mentioned three major roles, the Prime Minister has various other roles. These are:



नीति आयोग

National Institution for Transforming India



1 He is the chairman of the NITI Aayog, National Development Council, National Integration Council, Inter-State Council and National Water Resources Council.

2 He plays a significant role in shaping the foreign policy of the country.

3 He is the chief spokesman of the Union government.

4 He is the crisis manager-in-chief at the political level during emergencies.

OTHER POWERS & FUNCTIONS

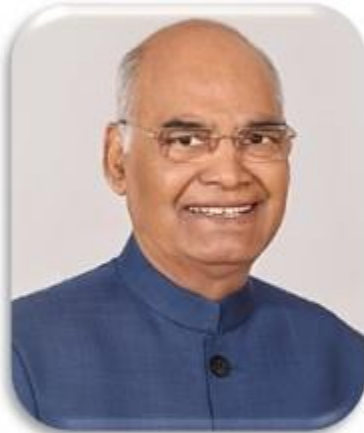


Dr B R Ambedkar stated, "If any functionary under our constitution is to be compared with the US president, he is the Prime Minister and not the President of the Union".

- 5** As a leader of the nation, he meets various sections of people in different states and receives memoranda from them regarding their problems, etc.
- 6** He is leader of the party in power.
- 7** He is political head of the services.
- 8** Thus, the Prime Minister plays a very significant and highly crucial role in the politico-administrative system of the country.

RELATIONSHIP WITH THE PRESIDENT

The following provisions of the Constitution deal with the relationship between the President and the Prime Minister:

**1 Article 74**

- There shall be a **council of ministers with the Prime Minister at the head to aid and advise the President** who shall, in the exercise of his functions, act in accordance with such advice.
- However, the President may require the council of ministers **to reconsider such advice** and the President shall act in accordance with the advice tendered after such reconsideration.

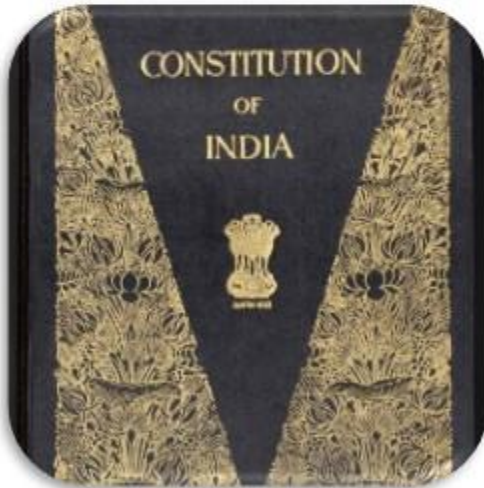
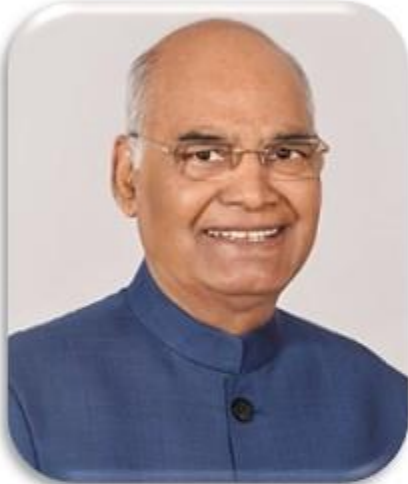
RELATIONSHIP WITH THE PRESIDENT



2 Article 75

- (a) The Prime Minister shall be appointed by the President and the other ministers shall be appointed by the President on the advice of the Prime Minister;
- (b) The ministers shall hold office during the pleasure of the president and
- (c) The council of ministers shall be collectively responsible to the House of the People.

RELATIONSHIP WITH THE PRESIDENT

**3 Article 78**

It shall be the duty of the Prime Minister:

- a) to communicate to the President all decisions of the council of minister relating to the administration of the affairs of the Union and proposals for legislation
- b) to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for and
- c) if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

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